

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING VARIOUS SECTIONS OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various sections of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming, are hereby amended as set out in this ordinance. Sections not amended herein are presumed to remain unchanged.

10.56.030 Requirement of handicapped parking.

- A. **The number, location, dimensions, and signing of accessible parking spaces shall be in accordance with the current Americans with Disabilities Act standards for accessible design.** ~~If parking spaces are provided for visitors or customers, except for private residences, handicapped only spaces shall be provided in the following ratio:~~
- ~~1. — 10 — 50 spaces: one handicapped space.~~
 - ~~2. — 51 — 100 spaces: two handicapped spaces.~~
 - ~~3. — Greater than 100 spaces: two plus one percent of total spaces over one hundred (100) handicapped spaces.~~
- B. All fractions in the ratios designated in **the current Americans with Disabilities Act standards for accessible design identified in** subsection A of this section shall be rounded up.
- C. All designated handicapped parking spaces shall be marked with a sign mounted on a substantial post or standard permanently fixed to or imbedded into the parking surface with the international symbol of accessibility, and the words “Handicapped Parking Only,” ~~or “Reserved Parking Only.”~~
- ~~D. — All designated handicapped parking spaces shall be a minimum of twelve (12) feet by twenty (20) feet in size except for those in parallel areas of the city streets, the size of which shall be determined by the city traffic engineer.~~
- ~~E. — All designated handicapped parking spaces shall be those parking spaces located nearest the main entrance of the building(s) served by the parking area.~~
- ~~F. — In the event that a designated handicapped space is regularly occupied by (an) employee(s) in a parking area used by the public, additional designated~~

~~handicapped spaces shall be provided in a number equal to the number of spaces occupied by employee(s).~~

~~G. The provisions of this section shall be applicable to new parking areas upon the publication of the ordinance from which this section derived. The provisions of this section shall apply to existing public or private parking areas two years after publication of the ordinance from which this section was derived.~~

10.56.040 Handicapped parking penalties.

Any person found guilty of violating Sections 10.56.010 and 10.56.020 shall be fined ~~not less than fifty dollars (\$50.00)~~ **in an amount to be determined by the municipal court.**

10.56.050 Restriction on residential handicap parking space use.

All applications for a residential handicapped parking space and all requests for renewal shall be submitted to the city ~~traffic engineer~~ **clerk** on forms provided.

10.56.080 Permit renewal.

Applications for renewal shall be made during November and December of each year. If a request for renewal has not been received by the city ~~traffic engineer~~ **clerk** by December 31st, the city traffic engineer shall immediately proceed to remove the handicapped parking space signs in question.

10.56.090 Permit issuance.

All applications for a handicapped parking space permit and requests for renewal shall be submitted to the mayor's council for people with disabilities for its investigation and recommendation. After due consideration, the mayor's council for people with disabilities shall submit its recommendations for approval or disapproval to the ~~mayor~~ **city traffic engineer** who shall have the authority to approve or disapprove all applications and all requests for renewal pursuant to the provisions set forth in this chapter.

10.56.120 Signing.

~~Each handicapped parking space shall be designated by two official handicapped parking signs.~~ All signs designating residential handicapped parking spaces shall have the words "Handicapped Applicant Parking Only" printed on them.

10.60.010 Signed time limitations.

Vehicles parked in an area where parking is limited by time must ~~vacate that area~~ **move 150 feet from the vehicle's parked position** before the expiration of time indicated. ~~This restriction shall apply daily to all vehicles unless otherwise allowed by law~~ **on posted signs on any day except Sundays and public holidays, unless otherwise indicated upon any of the streets within the city as designated by the city traffic engineer.**

~~"Area" is defined as the entire block on which a vehicle is parked and the perimeter of each block facing that block.~~

10.60.030 ~~Fine schedule~~ NOTICE OF VIOLATION.

When a vehicle is found to be in violation of this chapter a notice specifying the violation and amount of the fine will be affixed to the vehicle, or sent to the address indicated by current license plate registration records to the registered owner of the vehicle.

The notice of violation will also indicate the time and place of court appearance. The violation(s) may be paid in the manner indicated on the notice in lieu of a court appearance. ~~as follows:~~

A.	Improper parking, including wrong side, blocking alley and blocked sidewalk	\$10.00
B.	No parking zone	20.00
C.	Handicap parking only	100.00
D.	Illegal parking of semi Tractor/trucks	100.00
E.	Overstaying time limitation	
	First violation in a six month period: (Warning)	\$ 0.00
	Second in a six month period:	10.00
	Third in a six month period:	20.00
	Fourth and all subsequent in a six month period:	40.00

~~Fines will start again at \$0.00 at the expiration of each six month period from the date of the first violation. In the event automated enforcement is inoperable, the fine for overstaying time will be fifteen dollars (\$15.00) per violation.~~

10.60.040 ~~Penalty~~ FINE SCHEDULE.

Any such fine imposed pursuant to a notice of violation issued under Section 10.60.030 shall be determined by the municipal court, including any late fees, and shall be made available to the general public in the form of a fine schedule. ~~In lieu of appearing in court fines must be paid in the manner indicated within five week days. Should the fine not be paid in the five day period, a late penalty will apply in the amount of four dollars. An additional four dollars late penalty will apply for each violation unpaid past thirty (30) days. Violations that remain unpaid past ten (10) days the vehicle may be towed and impounded until such time as all overdue fines are paid, the vehicle may be booted, or a warrant or summons issued.~~

10.64.010 City traffic engineer to designate curb loading zones.

A. [. .]

- B. The city traffic engineer shall not hereafter designate or sign any curb loading zone upon special request of any person unless such person makes application for a permit for such zone and for two signs to indicate the ends of each such zone. The city clerk upon ~~granting~~ **issuing** a permit and causing such signs to be issued shall collect from the applicant and deposit in the city treasury a service fee of two hundred fifty dollars (\$250.00) per year or fraction thereof per space, not to exceed twenty-four (24) feet in length, and for reimbursement of the city for the value thereof in the event of misuse or upon expiration of permit. The city clerk shall notify, by certified mail, any applicant whose curb loading permit has not been paid in full and/or when reimbursements to the city are required pursuant to this section. If the permit fee or reimbursement has not been paid within thirty (30) days after notification, the city clerk ~~shall~~ **may** revoke the curb loading zone permit and establish a parking place in the curb loading zone.

10.64.030 City traffic engineer to designate public carrier stops and stands.

The city traffic engineer is authorized ~~and required~~ to establish bus stops, bus stands, taxicab stands and stands for other passenger common-carrier motor vehicles on such public streets in such places and in such number as he or she shall determine to be of the greatest benefit and convenience to the public, and every such stop, bus stand, taxicab stand or other stand shall be designated by appropriate signs.

10.64.060 Permits for loading or unloading at an angle to the curb.

- A. The ~~chief of police~~ **city traffic engineer** is authorized to ~~issue~~ **approve** special permits to permit the backing of a vehicle to the curb for the purpose of loading or unloading merchandise or materials subject to the terms and conditions of such permit. Such permits may be issued either to the owner or lessee of real property or to the owner of the vehicle and shall grant to such person the privilege as therein stated and authorized herein.

10.68.030 Procedures for establishment.

Upon receipt of written application representing a majority of the dwelling units located within the proposed critical parking and traffic area, the establishment process will be initiated. The request will also indicate the area proposed and the restrictions suggested. The application shall be submitted to the city clerk, who will then refer the request to the governing body. ~~The governing body may then direct~~ **and** the city traffic engineer. ~~to~~ **The city traffic engineer will** conduct a traffic and parking survey of the traffic and parking conditions in the area proposed. ~~The city traffic engineer will~~ **and** involve the other city departments and independent groups so that the survey addresses the entire concern. The city traffic engineer will then recommend either the granting or the denial of the designation or the designation with modification as to the area or proposed restrictions.

10.68.040 Residential parking permits authority.

The establishment of a critical traffic and parking area shall provide for the issuance of residential parking permits subject to the following requirements:

- A. The city traffic engineer shall identify the location and hours and days to be regulated by the residential parking permit procedure.
- B. An application for a permit shall be on a form **or electronic method** prepared by the city clerk and shall contain the name and address of the owner and/or occupant, make, model, and license number of the vehicle(s) and other such information as is reasonably necessary to enforce the provisions of this section. The application will be submitted to the city clerk.

This application shall be presented with a valid driver's license and such other information as may be necessary to prove residence within the designated critical traffic and parking area. No person shall furnish false information in an application for a vehicle permit. A false application shall be grounds for revocation of the permit and is punishable pursuant to the Cheyenne City Code.

- C. A nonrefundable permit application fee of ten dollars (\$10.00) shall accompany each application. ~~A ten dollar (\$10.00) deposit is required for each application to be refunded upon cancellation of permit. A~~ **If a residential critical parking and traffic area is approved, each vehicle within the area may obtain, renew annually, or transfer a permit for a fee of five dollars (\$5.00).**

[Editing Note: Remainder of Section Unchanged.]

10.68.070 Signs—Violation prohibited.

- B. It is unlawful and a person commits an offense under this chapter if he or she parks a vehicle not having a valid permit as set forth herein in such designated critical parking area. ~~Any violation under this section shall be punishable by a fine not to exceed ten dollars (\$10.00) for each violation. Such violation shall be plainly imprinted on the notice of violation, together with the cost of violation which may be paid in lieu of appearing in municipal court.~~

Section 2. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Marian J. Orr, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle